

Austria

Austrian Federal Competition Authority

I. Introduction

The Austrian Federal Competition Authority (AFCA) places a strong focus on modern working methods to achieve its goals efficiently and effectively. In doing so, it strives to maximize consumer welfare, promote innovation, ensure a sound input-output ratio, and deliver the best possible value for taxpayers. The Authority embraces both the opportunities and challenges of digital transformation by continuously evolving its instruments, processes, and tools—including the responsible adoption and integration of AI-based technologies.

II. International Cooperation

As part of its commitment to fostering collaboration and knowledge exchange, AFCA hosted its first AI-focused workshop within the framework of the European Competition Authorities (ECA) Meeting, held in February 2025 in Vienna. The event brought together over 80 experts from participating competition authorities, including DG COMP. Keynote presentations focused on:

- current and future applications of AI in competition enforcement;
- opportunities and risks posed by AI;
- common challenges faced by authorities;
- AI use cases across competition agencies.

AFCA Director General Natalie Harsdorf emphasized the importance of international cooperation and the exchange of best practices to effectively address AI-related challenges. She encouraged participants to translate insights from the workshop into practical improvements within their own agencies.

III. Institutional Aspects

A. Organizational Uplift and Challenges

Since its inception in 2024, the Forensic Department has developed extensive best practices on forensic tools and cases. To address ongoing digital developments and implement its strategic goals, the AFCA has significantly enhanced its institutional structure in 2024/2025. A key element of this transformation was the

expansion of the existing Forensics Department into a newly established unit dedicated to forensics, data analysis, and artificial intelligence (AI) (hereinafter Department for Forensics, Data Analytics and AI).

This new department currently comprises four ICT experts and is scheduled to be further reinforced by two additional specialists in the fields of data science and data engineers as of July 2025.

The reorganization reflects the growing relevance of digital expertise in competition enforcement. By integrating broader data analytical capacities and AI applications, AFCA is responding to the increasing demands of its operational environment—both in day-to-day enforcement work and from a strategic, structural perspective.

The allocation of a budget for advanced forensic, data, and investigative tools is growing. Beyond expenditures for personnel and office space, computational tools and systems represent the third-largest spending category at the AFCA. However, AFCA is aware of the fact that technology on its own is not enough. Equally critical is a highly skilled and continuously trained expert staff capable of effectively leveraging these systems to meet evolving challenges and deliver valuable internal support across the Authority. Ongoing adaptation and continuous professional development further contribute to the significant financial investment in this area.

Standard tools used in the day-to-day forensic work at the AFCA:

- FTK-Central as an eDiscovery Tool
 - Use of predictive review and predictive coding in investigation matter;
 - Email threading to group together emails with similar Conversation IDs.
- FTK as a forensic tool
 - FTK is used to gather data during dawn raids;
 - Extracting encrypted and password secured data for further use;
 - Restoring deleted or broken files;
 - Ambition to develop an in-house tool.
- A range of mobile forensic tools
 - To extract and analyze mobile and cloud data, the AFCA is using a range of mobile forensic tools. Analysis is focusing on communication data such as messengers. The usage of more

than one tool enables IT professionals to extract more information from a wider range of devices.

B. Close Cooperation Between the Department for Forensics, Data Analytics and AI and Staff Unit

The Department for Forensics, Data Analytics and AI is working closely with the general Unit of Staff which holds an operational mandate for digitalizing through driving the agency's digital transformation and reinforces the agency's digital mindset. Close cooperation between the two departments pushes a coordinated and strategic rollout of digitalization projects across the AFCA.

The mission of the interdisciplinary work between the Unit of Staff and Department for Forensics, Data Analytics and AI is twofold:

- To assist case teams in operational cases – such as during and after dawn raids;
- To contribute to the ongoing development of digital tools beyond classical forensic work that address emerging enforcement challenges for the AFCA.

Historically, the team's primary focus has been on the analysis of documents, chat messages, and other digital evidence gathered during dawn raids. In the medium term, its scope will be gradually expanded to encompass a broader range of analytical and investigative tasks.

With regard to results, the AFCA is already observing increased efficiency in data analysis through the use of AI tools, although their application currently remains within a controlled test environment. In all data-related activities, ensuring secure data storage, maintaining data integrity, and providing appropriate accessibility are key priorities for the Authority.

C. Newly Established Cartel Screening Team

Data screening tools in competition investigations are empirical methods used to analyze data sets in order to assess markets and the behavior of firms within them. They help identify patterns and draw well-founded conclusions based on specific evaluation criteria. These tools are widely used by European National Competition Authorities (NCAs) and are to be considered standard practice internationally. Through the establishment of a dedicated cartel screening unit the AFCA joins other members of the ECN highlighting the importance of *ex post* competition screening

methods. The newly established Cartel Screening Team concentrates currently on three key areas of activities.

First, it promotes the exchange of expertise by fostering collaboration and dialogue among national and international experts in competition enforcement and data analysis. This exchange aims to promote knowledge transfer, practical training, and the sharing of best practices in the use of data screening tools and other investigative techniques. To support this exchange the team covers legal, economic, and forensic competencies in a holistic approach.

Second, it focuses on a framework for strategic and systematic data collection to build a robust empirical foundation for market screening and the detection of potential anti-competitive behavior.

Third, the unit works to identify and address practical and legislative gaps that may hinder effective enforcement. This includes initiatives such as advocating for the creation of a transparency database for public procurement, which would enhance oversight and facilitate the detection of collusive practices in tendering processes.

IV. Computational Analysis of Case Data Beyond Core Forensic Work

The AFCA takes a holistic approach to digitalization, embedding digital thinking across all aspects of its operations. In this context, computational antitrust—understood as a collection of analytical methods applied to various types of data—is neither a recent development nor confined to specialized data expert units. AFCA has long employed econometric tools in its work, including the assessment of merger effects and sector inquiries. A variety of software tools—such as Stata, R, Matlab, Python, and Castor CoPilot—are routinely used for these purposes. This work is primarily carried out by economic and econometric experts within different case teams. A key objective moving forward is to further integrate data-driven methodologies with competition analysis across all areas of AFCA’s work.

IV. AFCAs Future plans on Computational Antitrust

In addition to implementing a cartel-screening system and piloting a complementary market-screening mechanism—both of which are key priorities for 2025 and 2026—AFCA is planning to further expand the use of artificial intelligence in core forensic work and beyond for specifically defined use cases. One core element

of these initiatives is the use of data scraping to systematically gather publicly available information for analytical purposes.

These priorities will be complemented by the development of in-house AI tools designed to support investigators in their daily tasks with maximum efficiency. AFCA's Department for Forensics, Data Analytics, and AI is currently evaluating a range of approaches, with the adoption of a large language model being a likely option, tailored to AFCA's specific requirements.

While the AFCA is committed to advancing its digital transformation, several challenges accompany this process. One key factor is ensuring that employees follow a consistent digital mindset at the same pace, which requires targeted internal communication, training, and a supportive organizational culture. Implementing new technologies also entails a broader change management process, in which established workflows must be rethought and adapted.

Moreover, the implementation of digital and AI-based tools demands careful risk assessment. Issues such as data security, potential dependencies on external technologies or providers, and strict compliance with data protection regulations must be thoroughly evaluated and managed.

Addressing these challenges in a proactive and structured manner is essential to ensure the sustainable and responsible integration of digital tools into AFCA's work.

True to its digital mindset, the AFCA is firmly convinced that computational antitrust and the use of AI are not temporary trends, but essential and enduring components of modern competition enforcement. Building competencies in these areas and employing a diverse set of advanced tools is considered indispensable, as many of the analyses currently conducted—and those expected to become increasingly relevant—would not be achievable without the efficiency gains offered by these computational instruments.¹

¹ For information on further questions on this topic please do not hesitate to contact us (Barbara.Seelos@bwb.gv.at) or take a look at the computational antitrust talk nr 33.Thibault Schrepel, *Episode 33: Natalie Harsdorf on Computational Antitrust in Austria*, STANFORD COMPUTATIONAL ANTITRUST PODCAST (Mar. 27, 2025), <https://www.youtube.com/watch?v=SAHulbq3J48>.